



File No.: EXP202303130

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On January 25, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against AYUNTAMIENTO DE ZARAGOZA with NIF P5030300G (hereinafter, the respondent).

The grounds for the complaint are the dissemination of his health data via email "without any type of seal or indication marking it as confidential."

He states that he had health problems arising from conflicts in the workplace and went to the Occupational Health and Safety Service of the City Council, which issued a medical report recommending that he go to the Health Surveillance Unit to assess a job adaptation or change.

He provides a copy of the medical report dated August 13, 2021.

This Health Surveillance Unit determined, on August 17, 2021, the adaptation of the tasks of his job position (the document is attached).

He states that this determination, which was to be notified to the interested party and to ***POSITION.1, was sent on August 28, 2021, along with the medical report from the Occupational Health and Safety Service of the City Council, without adopting appropriate security measures, allowing ***POSITION.2 to access his health data.

He specifies that the City Council of Zaragoza, in order to carry out confidential communications, has nominal corporate email accounts and an Internal Communications Service —SIC—, but in his case, neither the email nor the SIC was used, and it was opted to notify the determination, with both reports, via internal mail without any type of seal or indication marking it as confidential.

Along with the complaint, copies of the referred reports and determinations are provided.

He also provides copies of the emails containing his health data, where it is noted, in each communication, the following text:

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"Legal Warning: THIS EMAIL MAY CONTAIN CONFIDENTIAL INFORMATION REGARDING NATURAL PERSONS."

It is noted as an attached document the medical report from the Occupational Health and Safety Service of the City Council.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on March 10, 2023, for it to analyze and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on March 13, 2023, as noted in the acknowledgment of receipt in the file.

On April 11, 2023, a response was received by this Agency indicating the following:

The Head of the Sports Service of the City Council of Zaragoza held a meeting at the beginning of 2021 with the Municipal Data Protection Delegate, from which a subsequent joint effort was derived to update the current regulations in this area, such that the activity sheets for data processing concerning the Service were prepared for subsequent registration and the remaining measures recommended by the Municipal Delegate responsible for protection were adopted, including those related to the transfer of documentation via email.

On August 18, 2021, the report issued to ***POSITION.1 regarding the worker D. A.A.A. was forwarded -as an attached file via email- to the direct supervisor of that worker, Mr. B.B.B. Regarding the report that was forwarded, it is important to highlight that the Occupational Health and Safety Service, responsible for processing health data of workers, does not issue medical reports or health data of workers to this or any other municipal service.

The document forwarded contained the determination of the Occupational Health and Safety Service regarding the adaptation measures of the functions to be performed by the worker D. A.A.A., measures that had to be known and applied by his immediate superior Mr. B.B.B.

Although the nominal corporate account of Mr. B.B.B. or the Internal Communications Service -SIC- was not used for this transfer of documentation, the account used ***EMAIL.1 is primarily for the use of the center's manager, Mr. B.B.B., and in his absence, only personnel specifically delegated by him are authorized to open it.

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Notwithstanding this, the message contained all the guarantees of security and data protection, namely not only the name of its recipient and the content of the file being transferred but also the legal warning/clause that both the Data Protection Regulation and the Data Protection Act establish with all the necessary information to guarantee confidentiality and, where applicable, to exercise the rights of access/rectification, cancellation, and opposition at any time. A copy of the sent message is attached.

THIRD: On April 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On June 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

FIFTH: On July 10, 2023, a written response was received by this Agency regarding the initiation agreement of the present sanctioning procedure, where the respondent states the following:

“In the opinion of the AEPD, there is evidence of a breach of personal data security that consisted of having transferred on August 18, 2021, to (...) Mr. B.B.B. -in an attached document via email- the report issued by the Municipal Service of Prevention and Occupational Health concerning the worker Mr. A.A.A.

Although it is true that the account used ***EMAIL.1 for the transfer of the documentation is primarily for the use of the head of the center, Mr. B.B.B., and in his absence, only the personnel to whom he specifically delegates are authorized to open it, we inform you that at the time the incident occurred, this Service was in the process of implementing the measures indicated by the Municipal Data Protection Officer, at that time Mr. C.C.C., and there may still have been some discrepancies, such as not using, in the case subject to the complaint of Mr. A.A.A., the safest measures for the transfer of documentation, such as the Internal Communications System (SIC) or the nominal corporate email accounts.

This Service does not hesitate to affirm that this was an isolated incident from which appropriate measures were taken, designating the means and authorized personnel who would carry out this type of documentation transfers with total security by express delegation of the Service Management.”

SIXTH: On July 24, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection:

- Declare that the AYUNTAMIENTO DE ZARAGOZA, with NIF P5030300G, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, classified under Article 83.5 of the GDPR and Article 83.4 of the GDPR.

- Order the AYUNTAMIENTO DE ZARAGOZA, with NIF P5030300G, to, pursuant to Article 58.2.d) of

the GDPR, within 10 days, prove that its actions have complied with the indicated data protection regulations, in such a way that such measures prevent the dissemination of health data via email, and prove that appropriate measures have been adopted for the processing of these personal data to be carried out with total security.

SEVENTH: On July 27, 2023, the respondent, in response to the indicated resolution proposal, states the following:

"We reiterate what has already been expressed by ***POSITION.1 in its report of July 6, 2023, which was forwarded on July 10, 2023, to that agency, in which the error committed is acknowledged and it is indicated that necessary measures have been taken to prevent such a situation from recurring, designating the means and authorized personnel who would carry out the transfer of documentation with total security by express delegation of said Service Management."

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven,

PROVEN FACTS

FIRST: On August 28, 2021, the dissemination of health data of the claimant was carried out by the Occupational Prevention and Safety Service of the AYUNTAMIENTO DE ZARAGOZA using an email "without any type of seal or indication marking it as confidential," despite the existence of a corporate email or internal communications service for the sending of this type of information, which allowed ***POSITION.2 to access the claimant's health data.

SECOND: The municipality acknowledges the reported facts but claims that it is an isolated incident from which appropriate measures were taken, designating the means and authorized personnel who would carry out this type of documentation transfers with total security by express delegation of the Service Management.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

In the present case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since the CITY COUNCIL carries out, among other processes, the collection, storage, use, and dissemination of personal data of the residents of the municipality, such as: name and surname and email address... etc.

The CITY COUNCIL carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of the aforementioned Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach dated August 18, 2021, as evidenced by the report issued to ***POSITION.1 by (...) regarding the employee Mr. A.A.A., where it was forwarded - in an attached file via email - to the direct supervisor of said employee, (...) Mr. B.B.B.

The forwarded document contained the opinion of the Occupational Health and Safety Service regarding the adaptation measures of the functions to be performed by the employee Mr. A.A.A., measures that had to be known and applied by his immediate superior Mr. B.B.B.

In its defense, the city council has indicated that although the corporate nominal account of Mr. B.B.B. or the Internal Communications Service - SIC - was not used for this document transfer, the account used ***EMAIL.1 is primarily for the use of the center's manager, Mr. B.B.B., and in his absence, only the personnel specifically delegated by him are authorized to open it.

It should be noted that the receipt of a complaint regarding a security breach does not imply the direct imposition of a sanction, as it is necessary to analyze the diligence of the controllers and processors and the security measures applied, in accordance with the provisions of Article 32 of the GDPR.

III

Article 5.1.f) "Principles relating to processing" of the GDPR establishes:

"1. Personal data shall be:

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f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, a complaint is presented because on August 18, 2021, a report was issued to ***POSITION.1 by (...) Mr. A.A.A., via email "without any type of seal or indication marking it as confidential."

In this regard, the city council of Zaragoza responds that although the corporate nominal account of Mr. B.B.B. or the Internal Communications Service - SIC - was not used for this document transfer, the account used ***EMAIL.1 is primarily for the use of the center's manager, Mr. B.B.B., and in his absence, only the personnel specifically delegated by him are authorized to open it, so the city council of Zaragoza considers that the message contained all the guarantees of security and data protection, namely not only the name of its recipient and the content of the file being transferred but also the legal warning/clause that both the Data Protection Regulation and the Data Protection Law establish with all the necessary information to guarantee confidentiality and, where appropriate, to exercise the rights of access/rectification, cancellation, and opposition at any time.

Despite such assertions, it has been established that the city council has been processing the following personal data of the complainant: the name and surname, as well as personal health data, without respecting the principle of integrity and confidentiality in its processing.

These facts imply that the respondent is violating Article 5.1 f) of the GDPR, indicated in the legal basis II for infringing the duty of confidentiality of the personal data it processes, as it has been established that a message was sent to the address ***EMAIL.1 which, according to the City Council, is primarily for the use of the center's manager, Mr. B.B.B., and in his absence, only the personnel specifically delegated by him are authorized to open it.

Although they inform "that at the time the incident occurred, this Service was in the process of implementing the measures indicated by the Municipal Data Protection Delegate, at that time Mr. D.C.C.C., and there may still be some discrepancies such as not using, in the case subject to the complaint of Mr. A.A.A., the most secure measures for the transfer of documentation such as the Internal Communications System (SIC) or the corporate nominal email accounts.

Therefore, this Agency considers that the provision of data to unauthorized persons constitutes a violation of Article 5.1.f) of the GDPR attributable in this case to the CITY COUNCIL OF ZARAGOZA.

IV

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The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements typified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Article 83 "General conditions for the imposition of administrative fines" of the GDPR, paragraph 7 establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Likewise, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides the following:

"1. The regime established in this article shall apply to the processing for which the following are responsible or processors: ...

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration...

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2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation

on disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities. (...)"

For the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction would be an administrative fine. Therefore, the aforementioned infringement of Article 5.1.f) of the GDPR, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the infringement, is replaced by the declaration of infringement against the CITY COUNCIL OF ZARAGOZA.

VI

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure...

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measures to ensure an adequate level of security commensurate with the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
 - b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regular verification, evaluation, and assessment of the effectiveness of technical and organizational measures to ensure the security of processing.
2. In assessing the adequacy of the level of security, particular consideration shall be given to the risks presented by the processing of data, especially as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as a factor to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The data controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data can only process such data on instructions from the controller, unless required to do so by Union or Member State law."

In this case, at the time of the security breach, there is no record that the CITY COUNCIL OF ZARAGOZA had reasonable security measures in place based on the estimated potential risks.

This is so because the COUNCIL did not take into account basic aspects such as the use of named corporate accounts and also the sending via a messaging system that ensures delivery is made only to the position that, by virtue of their functions, must have access to the documentation.

Therefore, it is considered that the known facts constitute an infringement attributable to the CITY COUNCIL OF ZARAGOZA for violation of Article 32 of the GDPR.

VII

The aforementioned infringement of Article 32 of the GDPR constitutes the commission of the infringements specified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

5) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a two-year limitation period: infringements that constitute a substantial violation of the articles mentioned therein, particularly the following:

...

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.” (...)

VIII

Article 83 “General conditions for the imposition of administrative fines” of the GDPR, paragraph 7 states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or which they process:

...

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration...

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution sanctioning them with a warning. The resolution shall also establish the measures to be taken to cease the conduct or to correct the effects of the infringement that has been committed.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are...

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sufficient indications for this. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infractions are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the

Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.” For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the corresponding sanction is an administrative fine.

Therefore, the aforementioned infraction of Article 32 of the GDPR, in accordance with Article 83.7 of the GDPR, and as provided by Article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the infraction, this sanction is replaced by the declaration of infraction against the CITY COUNCIL.

IX

In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

Specifically, it will be required to demonstrate that their actions have complied with the data protection regulations indicated in the legal grounds, so that such measures prevent the dissemination of health data via email, and it must be demonstrated that appropriate measures have been taken to ensure that the processing of these personal data is carried out with total security and in accordance with the previously indicated data protection regulations.

The imposition of this measure is compatible with the sanction consisting of the declaration of administrative infraction, as provided in Article 83.2 of the GDPR.

The party being claimed states that at the time the incident occurred, it was in the process of implementing the measures indicated by the Municipal Data Protection Officer, and there may still be some discrepancies, as more secure measures for the transfer of documentation, such as the Internal Communications System (SIC) or the corporate nominal email accounts, were not being used. Furthermore, the party being claimed acknowledges the error made and indicates that necessary measures have been taken to prevent such a situation from recurring, designating the means and authorized personnel who would carry out the transfer of documentation with total security by express delegation from that Service Management.

However, in the allegations presented throughout the procedure, no documents have been provided that allow for the verification of the adoption of these new security measures to prevent the recurrence of the reported facts.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infraction in accordance with the provisions of the GDPR, classified as an infraction in its Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF ZARAGOZA, with NIF P5030300G, has infringed the provisions of Article 5.1.f) of the GDPR and Article 32 of the GDPR, infractions classified in Article 83.5 of the GDPR and Article 83.4 of the GDPR respectively.

SECOND: TO ORDER the CITY COUNCIL OF ZARAGOZA, with NIF P5030300G, that pursuant to Article 58.2.d) of the GDPR, within a period of 3 months, demonstrate that its actions have complied with the indicated data protection regulations, so that such measures prevent the dissemination of health data via email, and demonstrate that appropriate measures have been taken to ensure that the processing of these personal data is carried out with total security.

THIRD: TO NOTIFY this resolution to the CITY COUNCIL OF ZARAGOZA.

FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of

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the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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